

WHAT YOU CAN BORROW

You want to build a review game that feels like the one your students already love. Everybody tells you not to use copyrighted material and **nobody tells you where the line actually is**. Here it is, in one page, with the checklist to run before you share anything.

1

line that decides almost every case

7

checks to run before you hand it out

0

lawyers required to read this

The line, before anything else.

How a game works is free to borrow. The particular way somebody said it and drew it is not. Turn-based battles, collecting creatures, locked doors with clues, a health bar: all yours. Their names, their characters, their art, their music, their words: never.

Where this comes from

I keep a guardrails page in the software I build for my own high school woodshop course, because one of those projects borrows the structure of a classic handheld game. This is that page, rewritten for a teacher making something for one classroom. **Every legal point on page 2 is quoted from the United States Copyright Office**, and the sources are named.

Not legal advice, and one honest limit

This is a plain-language summary of published guidance to help you make better decisions, and it is not a substitute for your district's own policy or a lawyer. **When something matters, ask your district before you share it.** Nothing here is about building for sale, which is a different and harder question.

Three things the Copyright Office actually says

1 • Rules and systems are not protected. Expression is.

Copyright does not protect "ideas, methods, systems, procedures, processes, concepts, principles, discoveries, or devices" — and game rules and mechanics sit inside that list. That is Circular 33, *Works Not Protected by Copyright*.

So the *mechanic* is open. A rulebook's actual sentences, the board art, the character designs and the music are **expression**, and those are protected. **This one distinction settles most of what a teacher wants to know.**

2 • Names and short phrases are not copyrighted — but they may be trademarks

The Copyright Office is blunt: "Copyright does not protect names, titles, slogans, or short phrases." It then adds the part people miss: "In some cases, these things may be protected as trademarks."

That is a different law, and it is the one that actually catches teachers. Putting a famous character's name or a logo on your game is a trademark problem even though the name itself carries no copyright. Use your own names and the question never arises.

3 • "It is for school" is not a free pass

Fair use is real and education helps, but the Copyright Office says courts "evaluate fair use claims on a case-by-case basis" and that "there is no formula to ensure that a predetermined percentage or amount of a work — or specific number of words, lines, pages, copies — may be used without permission."

And directly: courts are more likely to find nonprofit educational use fair, "This does not mean, however, that all nonprofit education and noncommercial uses are fair." There is no ten-percent rule and there never was.

Why this is good news rather than bad.

The thing you actually want — a game that *plays* like the one they love — is the part that was never protected. **You do not need permission to build a game where answering right opens a locked door.** You need your own words and your own pictures on top of it.

Free to borrow, and never

Take it – this is the system	Leave it – this is somebody's expression
Turn-based battles where each side acts in order	Their creatures, their names, their cries, their designs
Collecting things and building a team from them	The actual roster, the types, the type chart as written
Locked doors that open with a code you earn	Their room art, their puzzle text, their voice lines
A health bar, lives, a timer, a streak counter	Their interface, their fonts, their sound effects
Leveling up, experience points, unlocking	Their exact numbers copied out of a wiki
A map you travel across with choices at forks	Their map, their place names, their music
"It plays a bit like that game" as a description	Their title or logo anywhere on your thing

The two-second test

Could you describe it to a colleague without naming the original? "Students collect creatures and battle with them" is a system and it is yours. "Students collect the yellow electric one" is somebody's character, and it is not.

The three places teachers get caught, every time

Images pulled from a search. The single most common one. A picture on the internet is not free because it is on the internet.

Fonts and sound effects. Licensed like anything else, and the license usually says what you may do with them.

The title. A clever play on a famous game's name puts the famous name on your cover, which is the trademark question from page 2.

Seven checks, about four minutes

Run these on anything you are about to put in front of a class, hand to a colleague, or put on a school server. **Any "no" is a thing to change, not a reason to stop.**

1 Is every name in it mine?

Characters, places, items, the title. Search the file for the original's names and confirm zero hits. **This one check catches most of it.**

2 Did every picture come from somewhere I can name?

Drawn by me, made by the program, or from a source whose license I could point at. "Found it" is not a source.

3 Is every sentence in it written by me or by my class?

Not pasted from a wiki, a manual or another teacher's resource. Questions and answers included.

4 Would somebody think this IS the original?

Not "is it similar" — similar is fine. Would a person believe it came from that company? If yes, change the look until they would not.

5 Is there a logo anywhere?

Including in a screenshot, a background, or a font that is somebody's brand. Logos are the clearest trademark problem there is.

6 Am I giving it away or selling it?

Your own classroom is the easiest case. A shared drive is wider. A sale is a different question entirely and this page does not answer it.

7 Can I say in one sentence what is mine?

"The mechanic is a common one, and the words, pictures and code are mine." If you cannot say that, go back to check 1.

Keep the answers. Three lines in a file beside the game — where the pictures came from, who wrote the text, what the names are. **Five minutes now beats trying to remember in April** when somebody asks whether it can go on the school website.

It will hand you protected things. Say no.

Ask an AI for "a game like the famous one" and it will cheerfully put the real names in. **It is not checking, and it does not know your district.** You are the one who decides.

PUT THIS IN THE PROMPT, EVERY TIME

Build this in the style of the genre, but **use no names, characters, places, items, text or artwork from any existing game.** Invent all of them. If you are about to use something from a real product, stop and tell me instead of using it.

And when it does it anyway

"You used a name from a real game. Replace every one of them with your own inventions and list what you changed." **Ask for the list** — that is how you find the two you would not have spotted.

My game, checked

Fill this in and keep it with the file.

The mechanic I borrowed, described without naming anything:

Where the pictures came from:

Who wrote the words:

Checked on:

If you want the game as well as the rules

Our **Vibe Code Your Own Game** packs hand you a finished review game you own outright — your questions go in from a setup screen, no code, and it runs with the wifi down. Every one of them is built to the checklist on page 4. Search our store.

If this was useful, would you leave a review?

TPT gives you credit toward future purchases for every review, and it is the only thing that decides whether another teacher ever sees this. Sources: US Copyright Office Circular 33, the Copyright Office FAQ on what is protected, and copyright.gov/fair-use.